

The bargaining notebook

Day 4 · Session 3 | Both sectors | Shared resource

Build this as you go, issue by issue — not in the last ten minutes. You are taking it into the negotiation, and a rushed notebook is close to useless once the room gets going.

Part 1 — The Ten-Step Preparation Checklist

Work through these IN ORDER. The most common failure is jumping to Step 8 and building a justification backwards. Nominate one team member whose job is to say "we are on step three" when someone proposes a number.

Step 1. Clarify your objectives

What must be achieved — not what would be nice to have?

Step 2. Gather and verify your evidence

Which figures can you defend if challenged? State the scope and denominator.

Step 3. Identify your own underlying interests

Why do you want what you want? What sits beneath the opening position?

Step 4. Anticipate the other side

Their likely position, their interests, and their real constraints.

Step 5. Determine your BATNA

If there is no agreement today, what actually happens? Be honest, not aspirational.

Step 6. Decide your preferred approach

Needs-based, positional, or a combination? Which issues fall where, and why?

Step 7. Identify genuine trade-offs

What are you actually willing to give, and what would you want for it?

Step 8. Opening position and walk-away point

Only now. Per issue, not overall.

Step 9. Agree team roles

Who leads? Who records? Who watches the other side?

Step 10. Plan your opening move

What exactly will you say first, and in what tone?

Part 2 — The Bargaining Notebook

One page per issue. Complete these as your team settles each issue during preparation — not afterwards. Use as many issue pages as you need; three are provided.

Issue 1

The issue	Name it specifically — one item, not the whole negotiation
Our position	What we are asking for on this issue
Our interest	Why it matters to us — the need beneath the position
Our walk-away	The point below which we would rather have no agreement on this item
Their position	What we expect them to ask for
Their interest & constraints	What sits beneath it, and what genuinely limits them
Evidence	Figures and criteria we can defend — with scope, denominator and source
Our approach here	Needs-based, positional, or combined — and why for this issue
Trade-off available	What we could give on this issue, and what we would want for it

Issue 2

The issue	Name it specifically — one item, not the whole negotiation
Our position	What we are asking for on this issue
Our interest	Why it matters to us — the need beneath the position
Our walk-away	The point below which we would rather have no agreement on this item
Their position	What we expect them to ask for
Their interest & constraints	What sits beneath it, and what genuinely limits them
Evidence	Figures and criteria we can defend — with scope, denominator and source
Our approach here	Needs-based, positional, or combined — and why for this issue
Trade-off available	What we could give on this issue, and what we would want for it

Issue 3

The issue	Name it specifically — one item, not the whole negotiation
Our position	What we are asking for on this issue
Our interest	Why it matters to us — the need beneath the position
Our walk-away	The point below which we would rather have no agreement on this item
Their position	What we expect them to ask for
Their interest & constraints	What sits beneath it, and what genuinely limits them
Evidence	Figures and criteria we can defend — with scope, denominator and source
Our approach here	Needs-based, positional, or combined — and why for this issue
Trade-off available	What we could give on this issue, and what we would want for it

Part 3 — Notebook-Level Decisions

These apply across the whole negotiation, not to a single issue.

Decision	Your answer
Our overall BATNA — what happens if there is no agreement at all	
Who leads the conversation	
Who records what is agreed	
Who watches the other side and reads the room	
Who has authority to decide in the room if we disagree internally	

Part 4 — Your Difficult-Moments Plan

Difficult moments are normal in a negotiation over something people care about. Most are survivable if you have decided in advance how you will respond — the damage is usually done by an improvised reaction in the first ten seconds.

When emotion arrives at the table

Decided in advance	Detail
Slow down	Lower your pace and volume rather than matching theirs. Matching escalates.
Acknowledge first	Address the feeling before the substance: "I can hear this matters — I want to get it right."
Separate person from problem	Say it out loud if you need to.
Ask for a break	Five minutes is a technique, not a retreat. Experienced negotiators use it constantly.

Five behaviours and a response to each

If they...	Detail
Repeat the same demand	Say what you have heard in their words, then ask what would need to change for movement to be possible.
Make it personal	Name it once, calmly, then return to the issue. Do not defend yourself at length.
Threaten to walk out	Do not bid against it. Acknowledge, restate what no agreement costs both sides, and wait.
Add a demand at the last minute	Name it as new. Decide openly whether the agenda reopens.
Go silent	Invite them in directly. Silence often holds the objection that surfaces after you think you have agreement.

Helping the other side move without losing face

Concern about standing and credibility can prevent movement even when the substance becomes acceptable. Explore how a party could explain a change honestly to its constituency.

What makes movement possible	Detail
New information	A genuinely new fact can justify a changed position where hours of pressure could not.
A reciprocal move	However small or symbolic — so that nobody moves alone.
Framing language	Words that make the shift a decision rather than a surrender. You can supply these for them, deliberately.
A private conversation first	Many public agreements are actually reached before the public moment.

Question 1

Before you go into the room: what **ONE** small reciprocal move is your team ready to offer? Decide it now — teams that prepare one use it; teams that do not, do not think of it live.

Part 5 — Your Improvement Priorities

Copy your two priorities from Day 3 and tell your team what they are. Ask a teammate to help you notice the trigger and practise the intended response.

Priority	When X happens, I will do Y
Priority 1	
Priority 2	